

FEDERAL DEPOSIT INSURANCE CORPORATION

Re: Stellantis Bank USA, Salt Lake City, Utah
(In Organization)

Application for Federal Deposit Insurance

ORDER

The Board of Directors of the Federal Deposit Insurance Corporation (FDIC) has fully considered all available facts and information relevant to the statutory factors enumerated in section 6 of the Federal Deposit Insurance (FDI) Act, 12 U.S.C. § 1816, including financial history and condition, capital adequacy, future earnings prospects, general character and fitness of management, risk to the Deposit Insurance Fund, convenience and needs of the community, and consistency of corporate powers, as they relate to the application for Federal deposit insurance for Stellantis Bank USA (Bank), a proposed Utah-chartered nonmember industrial bank to be headquartered in Salt Lake City, Utah, at an address to be determined prior to commencing operations. The FDIC has concluded that the application should be approved.

Accordingly, it is hereby **ORDERED**, for the reasons set forth in the attached Statement, that the application submitted by the Bank for Federal deposit insurance be, and the same hereby is, approved, subject to the following conditions:

1. The Bank shall have initial paid-in capital funds of not less than \$150,000,000.
2. The leverage ratio (as defined in the FDIC's capital regulations (12 CFR part 324)) shall be maintained at not less than fifteen percent (15%), and the Bank shall provide for an adequate allowance for credit losses.
3. Prior to the effective date of Federal deposit insurance, the Bank, Stellantis Financial Services U.S. Corporation (SFSUS), FCA North America Holdings LLC (FCA NAH), and Stellantis N.V. (Stellantis) shall enter into a Capital and Liquidity Maintenance Agreement and a Parent Company Agreement with the FDIC.
4. The Bank shall adopt an accrual accounting system for maintaining the financial records of the Bank in accordance with U.S. Generally Accepted Accounting Principles, and maintain separate accounting and other business records, including customer account records and data, from Stellantis, FCA NAH, SFSUS, and their affiliated entities. In addition, the Bank's books and records shall be maintained under the control and direction of authorized Bank officials and available for review by the FDIC at the Bank's main office.
5. An independent audit of the Bank shall be performed annually.
6. Prior to opening for business and during the Bank's first three years of operation, the Bank shall submit written notice to and obtain the prior written non-objection of the Regional Director for any proposed change to the Board of Directors or any senior executive officer position. Such notice shall be submitted at least thirty (30) days prior to the proposed election to the Board of Directors or appointment and shall include a

complete Interagency Biographical and Financial Report for each proposed election or appointment.

7. Prior to the effective date of Federal deposit insurance, the Bank shall obtain adequate fidelity coverage.
8. Prior to the Bank opening for business, full disclosure shall be made to all proposed directors of the Bank of the facts concerning the interest of any insider in any transactions being effected or contemplated, including the identity of the parties to the transaction and the terms and costs involved. An “insider” is a person who: (i) is or is proposed to be a director, officer, or incorporator of the Bank; (ii) is a shareholder who directly or indirectly controls ten percent (10%) or more of any class of the Bank’s outstanding voting stock; or (iii) is an associate or related interest of any such persons.
9. Without the Regional Director’s prior written approval, the Bank shall not enter into any transaction with a non-U.S. affiliate.
10. Prior to opening for business, the Bank shall finalize and implement a Community Reinvestment Act Strategic Plan that is appropriate for its business strategy, and which is approved by the Regional Director.
11. Prior to the effective date of Federal deposit insurance, Stellantis shall submit to the Regional Director executed copies of all necessary agreements to Consent to Jurisdiction and Maintenance of Agent for Service of Process and the Appointment of Agent for Service of Process.
12. The Bank shall not commence operations until the FDIC has conducted a pre-opening visitation with findings satisfactory to the Regional Director.
13. Prior to opening for business, the Bank shall obtain all necessary and final approvals from all appropriate federal, state, or other appropriate authorities. Federal deposit insurance shall not become effective until the Bank has been granted a charter and has authority to conduct a banking business, and its establishment and operation as a depository institution has been fully approved by the State of Utah.
14. The Bank shall notify the Regional Director within fifteen (15) days if any risk limits specified within the Business Plan are breached. This notice shall include the Bank’s action plan to reduce said risk.
15. Approval is conditioned on the facts provided through the application process and as currently known by the FDIC. If there are any material events or changes prior to the Bank opening for business, the Bank shall notify the Regional Director as soon as the Bank becomes aware of the event.
16. Until Federal deposit insurance becomes effective, the FDIC retains the right to alter, suspend or withdraw its commitment should an interim development be deemed by the Regional Director to warrant such action.

17. If Federal deposit insurance has not become effective within twelve (12) months from the date of this ORDER, or unless, in the meantime, a written request for an extension of time by the Bank has been approved by the Regional Director, this approval shall expire at the end of said twelve-month period.

By Order of the Board of Directors of the Federal Deposit Insurance Corporation.

Dated at Washington, D.C. this 13 day of May, 2026.

FEDERAL DEPOSIT INSURANCE CORPORATION

By: / S /
Debra A. Decker
Executive Secretary

FEDERAL DEPOSIT INSURANCE CORPORATION

In Re: Stellantis Bank USA (In Organization)
Salt Lake City, Utah
Application for Federal Deposit Insurance

STATEMENT

Pursuant to the provisions of section 5 of the Federal Deposit Insurance (FDI) Act, 12 U.S.C. § 1815, an application for Federal deposit insurance has been filed for Stellantis Bank USA (Bank), a proposed Utah-chartered nonmember industrial bank, to be headquartered in Salt Lake City, Utah, at a location yet to be determined. The organizers have applied to the Utah Department of Financial Institutions for an industrial bank charter.

The Bank will be a wholly owned subsidiary of Stellantis Financial Services U.S. Corporation, Houston, Texas (SFSUS), which is wholly owned by Stellantis N.V., Hoofddorp, Netherlands (Stellantis) through FCA North America Holdings LLC, Auburn Hills, Michigan (collectively Parent Companies). Stellantis is a publicly traded, multinational automobile manufacturer. SFSUS, formed through a merger with First Investors Financial Services, Inc. in 2021, serves as Stellantis' financial services company in the United States. SFSUS offers automotive financing products to and through independent Stellantis dealers.

The Bank's primary business line will be the purchase of retail installment contracts from dealers that sell Stellantis vehicles but are otherwise independent from SFSUS and other affiliates. The Bank's indirect automotive financing transactions involving independent dealers that do not receive floorplan financing from Stellantis or other Stellantis affiliates would not be considered covered transactions with affiliates subject to Section 23A of the Federal Reserve Act by operation of the attribution rule. The attribution rule provides that "any transaction by a member bank with any person shall be deemed to be a transaction with an affiliate to the extent that the proceeds of the transaction are used for the benefit of, or transferred to, that affiliate." 12 U.S.C. 371c(a)(2). The attribution rule has not been applied where a bank purchases loans from independent dealers that do not receive floorplan financing from the bank or a bank affiliate.

The Bank also plans to offer consumer loans, including installment loans and home electric vehicle charging stations, and commercial loans to independent dealers for capital expenditures. The Bank will offer deposits through a nationwide program comprised of NOW, savings, money market accounts and time certificates of deposit offered to consumers through a website and mobile application.

The FDIC must consider the statutory factors of section 6 of the FDI Act, 12 U.S.C. § 1816, when evaluating an application for deposit insurance. These factors relate to the financial history and condition of the depository institution; the adequacy of capital and management; the future earnings prospects; the general character and fitness of management, the risk to the Deposit Insurance Fund; the convenience and needs of the community to be served; and the consistency of corporate powers with the FDI Act.

The FDIC also has considered whether the Parent Companies will serve as a source of financial strength to the Bank, as required by section 38A(b) of the FDI Act (12 U.S.C. § 1831o-1(b)). The Bank and the Parent Companies have expressed their willingness to execute a Capital and Liquidity Maintenance Agreement with conditions and requirements for the Parent Companies to provide financial resources to support the Bank, which the FDIC has determined are reasonable and necessary to ensure the adequacy of the Bank's capital and maintain sufficient liquidity.

The FDIC also has considered that the Parent Companies are not subject to consolidated Federal bank supervision. As an additional safeguard to protect the safety and soundness of the Bank and the Deposit Insurance Fund, the Bank and the Parent Companies have expressed their willingness to execute a Parent Company Agreement with conditions and requirements related to reporting and examination of Parent Companies, and to allow the FDIC to monitor compliance with laws and regulations governing transactions with affiliates. The Bank will also be required to maintain a board of directors with a majority of members that are independent of the Parent Companies.

For the purposes of this proposal, capital and management are considered satisfactory, and projections for future earnings prospects are favorable. The general character and fitness of management is satisfactory. Corporate powers to be exercised are consistent with the purpose of the FDI Act. The Bank's plans appear to satisfy the convenience and needs of the community. No undue risk to the Deposit Insurance Fund is apparent.

Accordingly, based upon careful evaluation of all available facts and information, and in consideration of the factors of section 6 of the FDI Act, the Board of Directors of the Federal Deposit Insurance Corporation has concluded that approval of the application is warranted, subject to certain prudential conditions.

**BOARD OF DIRECTORS
FEDERAL DEPOSIT INSURANCE CORPORATION**